

Sushil Kumar Pandey v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · Writ - C No. 37313 of 2022 · **Writ disposed; objections within fifteen days and further proceedings under the Electricity Supply Code, 2005; second prayer withdrawn with liberty to challenge the later final assessment; amendment rejected as not pressed.**

HEADNOTE

A writ challenging a theft-assessment order dated 9 July 2022 and a recovery citation dated 30 August 2022 is disposed of without a finding on service, theft, or quantum. The licensee had relied on private-courier dispatch and could not show service; its Managing Director then stated that, the consumer denying service of the final assessment, the department would give a fresh hearing and pass a fresh order. The Court directed the petitioner to file objections within fifteen days and respondent no. 4 to proceed under the Electricity Supply Code, 2005. It did not decide whether Section 27 of the General Clauses Act, 1897 requires registered post, and the final order did not continue the interim abeyance of recovery. A second prayer, to decide an objection dated 17 August 2022 to another provisional assessment, was withdrawn with liberty to challenge the final assessment passed during the writ. An amendment application was rejected as not pressed.

FACTUAL SUMMARY

Sushil Kumar Pandey petitioned the Allahabad High Court in Writ-C No. 37313 of 2022 against the State of U.P. and three others, including Purvanchal Vidyut Vitaran Nigam Limited. He challenged a recovery citation dated 30 August 2022 and an order dated 9 July 2022 for alleged theft of electricity, saying no final assessment existed. On 11 January 2023 recovery was kept in abeyance. The licensee produced provisional and final orders but could not prove service. It said a provisional assessment notice was sent on 3 December 2019 by Abhi Express Couriers. Noting Section 27 of the General Clauses Act, 1897, the Court directed the Managing Director to enquire whether courier service was permitted and whether that notice was delivered.

On 2 February 2023 the Managing Director's affidavit said the final assessment had been served by courier, but that, the petitioner denying service, the department would hear him afresh and pass a fresh order. A further prayer sought a decision on his objection dated 17 August 2022 to another provisional assessment. Counsel admitted a final assessment had since been passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Disputed service of a theft assessment — objections, then further proceedings under the Supply Code

QUESTION

Where a consumer challenges recovery on a theft assessment and denies service of the final order, and the licensee agrees to a fresh hearing and a fresh order, does the writ court decide the demand?

HOLDING

No. On the affidavit of the Managing Director, Purvanchal Vidyut Vitaran Nigam Limited, that the final assessment had been served by courier but that a fresh hearing and a fresh order would follow because the petitioner denied service, the Court directed Sushil Kumar Pandey to file objections, if any, within fifteen days, and directed respondent no. 4 thereafter to proceed in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The challenge was to the order dated 9 July 2022 and the recovery citation dated 30 August 2022 in a case of theft of electricity. The Court did not quash either, and the final order did not extend the interim abeyance of recovery. ¶ [order of 2.2.2023](#)

QUALIFIER

The direction adopts the licensee's decision to rehear and pass a fresh order. It is not a finding that courier service was invalid.

FLAG The 2.2.2023 order cites the Electricity Supply Code, 2005 without a clause number, in a matter it describes as theft of electricity. Keyed to Clause 8.1 as that Code's theft-assessment procedure. Section 27 of the General Clauses Act, 1897 is stated only in the 19.1.2023 interim order, which directed an enquiry and did not quash the assessment. The source is an unnumbered seven-page compilation of orders dated 11.1.2023, 18.1.2023 (two), 19.1.2023, 27.1.2023 and 2.2.2023.

PRINCIPLE TAGS

fresh-order-after-hearing-supply-code-procedure Because the Managing Director stated that a fresh hearing and a fresh order would be given once service of the final assessment was denied, the Court disposed of the challenge to the 9 July 2022 order and the 30 August 2022 recovery citation by requiring objections within fifteen days and directing respondent no. 4 to proceed under the Electricity Supply Code, 2005. ¶ [order of 2.2.2023](#)

opportunity-before-final-assessment The licensee could not show service of the assessment orders. Courier dispatch was not treated as concluded service. The consumer was given fifteen days to object, and further action was left to the procedure under the Supply Code, 2005. ¶ [order of 19.1.2023](#); [order of 2.2.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SERVICE OF THE PROVISIONAL ASSESSMENT BY PRIVATE COURIER WAS PERMISSIBLE UNDER DEPARTMENTAL GUIDELINES OR UNDER SECTION 27 OF THE GENERAL CLAUSES ACT, 1897, AND WHETHER THE NOTICE SENT ON 3 DECEMBER 2019 BY ABHI EXPRESS COURIERS WAS DELIVERED

On 19 January 2023 the Court stated that Section 27 requires service by registered post and directed the Managing Director to enquire into courier service and delivery, and to act if normal procedure had been departed from. The 2 February 2023 disposal did not answer that enquiry. The department asserted courier service of the final assessment and agreed to a fresh hearing because service was denied. ¶ [order of 19.1.2023](#); [order of 2.2.2023](#)

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN, AND THE CORRECTNESS OR QUANTUM OF THE ORDER DATED 9 JULY 2022 AND THE RECOVERY CITATION DATED 30 AUGUST 2022

Left to objections within fifteen days and further proceedings under the Electricity Supply Code, 2005. Neither document was quashed or affirmed. The final order did not continue the interim abeyance of recovery.

¶ [order of 2.2.2023](#)

NOT DECIDED — THE MANDAMUS TO DECIDE THE OBJECTION DATED 17 AUGUST 2022 TO ANOTHER PROVISIONAL ASSESSMENT, AND THE LEGALITY OF THE FINAL ASSESSMENT PASSED ON THAT MATTER DURING THE WRIT

Counsel admitted that a final assessment had been passed. That prayer was withdrawn with liberty to challenge the final assessment in independent proceedings. The Court did not examine it. ¶ [order of 2.2.2023](#)

NOT DECIDED — THE AMENDMENT APPLICATION

Rejected as not pressed, with liberty to file an independent writ petition or to seek relief by another mode. Merits were not considered. ¶ [order of 2.2.2023](#)